

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1564

By: Duel

AS INTRODUCED

An Act relating to civil procedure; creating the Oklahoma Expedited Actions Act; providing for application of expedited actions process; providing for recovery; providing process for removal of case from expedited actions process; providing for governing discovery; providing for trial setting; providing time limits for trial; providing definition; providing alternative dispute resolution; providing for challenging admissibility of expert testimony; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1775 of Title 12, unless there is created a duplication in numbering, reads as follows:

Section 1775 et seq. shall be known and may be cited as the "Oklahoma Expedited Actions Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1776 of Title 12, unless there is created a duplication in numbering, reads as follows:

1 A. The expedited actions process provided for in Section 1775
2 et seq. applies to a suit in which all claimants, other than
3 counter-claimants, affirmatively plead that they seek only monetary
4 relief aggregating Two Hundred Fifty Thousand Dollars (\$250,000.00)
5 or less, excluding interest, statutory or punitive damages and
6 penalties, and attorney fees and costs.

7 B. In no event may a party who prosecutes a suit under this act
8 recover a judgment in excess of Two Hundred Fifty Thousand Dollars
9 (\$250,000.00), excluding interest, statutory or punitive damages and
10 penalties, and attorney fees and costs.

11 SECTION 3. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1777 of Title 12, unless there
13 is created a duplication in numbering, reads as follows:

14 A. A court shall remove a suit from the expedited actions
15 process:

16 1. On motion and a showing of good cause by any party; or

17 2. If any claimant, other than a counter-claimant, files a
18 pleading or an amended or supplemental pleading that seeks any
19 relief other than the monetary relief allowed by Section 2 of this
20 act.

21 B. A pleading, amended pleading, or supplemental pleading that
22 removes a suit from the expedited actions process may not be filed
23 without leave of court unless it is filed before the earlier of
24 thirty (30) days after the discovery period is closed or thirty (30)

1 days before the date is set for trial. Leave to amend may be
2 granted only if good cause for filing the pleading outweighs any
3 prejudice to an opposing party.

4 C. If a suit is removed from the expedited actions process, the
5 court shall reopen discovery.

6 SECTION 4. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1778 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 Discovery is governed by Section 3226 of Title 12 of the
10 Oklahoma Statutes.

11 SECTION 5. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 1779 of Title 12, unless there
13 is created a duplication in numbering, reads as follows:

14 On any party's request, the court shall set the case for a trial
15 date that is within ninety (90) days after the discovery period
16 ends. The court may continue the case twice, not to exceed a total
17 of sixty (60) days.

18 SECTION 6. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1780 of Title 12, unless there
20 is created a duplication in numbering, reads as follows:

21 A. Each side is allowed no more than eight (8) hours to
22 complete jury selection, opening statements, presentation of
23 evidence, examination and cross-examination of witnesses, and
24 closing arguments. On motion and a showing of good cause by any

1 party, the court may extend the time limit to no more than twelve
2 (12) hours per side.

3 B. The term "side" is not synonymous with "party", "litigant",
4 or "person". Rather, "side" means one or more litigants who have
5 common interests on the matters with which the jury is concerned.

6 C. Time spent on objections, bench conferences, bills of
7 exception, and challenges for cause to a juror are not included in
8 the time limit.

9 SECTION 7. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 1781 of Title 12, unless there
11 is created a duplication in numbering, reads as follows:

12 A. Unless the parties have agreed not to engage in alternative
13 dispute resolution, the court may refer the case to an alternative
14 dispute resolution procedure once, and the procedure shall:

15 1. Not exceed a half-day in duration, excluding scheduling
16 time;

17 2. Not exceed a total cost of twice the amount of applicable
18 civil filing fees; and

19 3. Be completed no later than sixty (60) days before the
20 initial trial setting.

21 B. The court shall consider objections to the referral unless
22 prohibited by statute.

1 C. The parties may agree to engage in alternative dispute
2 resolution other than that provided for in subsection A of this
3 section.

4 SECTION 8. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1782 of Title 12, unless there
6 is created a duplication in numbering, reads as follows:

7 Unless requested by the party sponsoring the expert, a party may
8 only challenge the admissibility of expert testimony as an objection
9 to summary judgment evidence during a pre-trial conference or during
10 the trial on the merits. This paragraph does not apply to a motion
11 to strike for late designation.

12 SECTION 9. This act shall become effective November 1, 2025.

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